

TERMS AND CONDITIONS

Tomorrow Innovations Inc.

www.tomoclub.org

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PLEASE READ THESE TERMS AND CONDITIONS CAREFULLY BEFORE USING THE TOMOCLUB WEBSITE OR ANY SERVICES OFFERED BY TOMORROW INNOVATIONS INC. BY ACCESSING OR USING OUR WEBSITE, YOU AGREE TO BE BOUND BY THESE TERMS. IF YOU DO NOT AGREE, DO NOT USE THIS WEBSITE.

1. PARTIES AND ACCEPTANCE

These Terms and Conditions ("Terms") constitute a legally binding agreement between you ("User," "you," or "your") and Tomorrow Innovations Inc., an Ohio corporation with its principal place of business at 4197 Tuller Road, Dublin, Ohio 43017, USA ("TomoClub," "Company," "we," "us," or "our").

By accessing or using the TomoClub website located at www.tomoclub.org (the "Website"), purchasing any products or services, or subscribing to any membership plan offered through the Website, you affirm that:

- You have read, understood, and agree to be bound by these Terms;
- You are at least 18 years of age, or if you are a parent or legal guardian, you are accepting these Terms on behalf of a minor under your legal authority;
- You have the legal authority and capacity to enter into this agreement;
- Your use of the Website and Services does not violate any applicable laws or regulations.

2. DESCRIPTION OF SERVICES

2.1 Platform Overview

TomoClub is an EdTech and community membership platform that provides educational content, professional development resources, tools, community forums, blog posts, media content, and related services (collectively, the "Services") primarily designed for school administrators, school leaders, teachers, educators, parents, and guardians.

2.2 End Users and Purchasers

TomoClub's content and educational products may be used by or benefit students and minors. However, all purchases, memberships, account registrations, and direct transactions are intended for and must be conducted by adults — specifically parents, guardians, school administrators, or educators — acting on behalf of minor end-users. Minors do not register accounts or directly transact on the Website. TomoClub does not knowingly collect personal information directly from children under the age of 13 in violation of the Children's Online Privacy Protection Act (COPPA).

2.3 Website Accessibility

The Website is publicly accessible without user login or account registration. Certain premium content, membership benefits, and purchased products may be delivered through email, digital download, or third-party platforms. We reserve the right to modify, suspend, or discontinue any aspect of the Services at any time, with or without notice.

3. INTELLECTUAL PROPERTY RIGHTS

3.1 Ownership

All content on the Website, including but not limited to text, articles, blog posts, graphics, logos, icons, images, audio clips, video clips, digital downloads, data compilations, ebooks, course materials, curriculum guides, and software (collectively, "Content"), is the exclusive property of Tomorrow Innovations Inc. or its content suppliers and is protected by United States and international copyright, trademark, patent, trade secret, and other intellectual property laws.

3.2 Limited License

Subject to your compliance with these Terms, TomoClub grants you a limited, non-exclusive, non-transferable, revocable license to access and use the Website and its publicly available Content solely for your personal, non-commercial, educational purposes. This license does not include the right to:

- Reproduce, distribute, publicly display, or create derivative works from any Content without prior written consent;
- Use any Content for commercial purposes, including resale, sublicensing, or competitive analysis;
- Remove or alter any copyright, trademark, or other proprietary notices;

- Use automated tools, scrapers, bots, or data mining technologies to access or extract Content;
- Systematically download or cache Content to create competing products or services.

3.3 Trademarks

"TomoClub," the TomoClub logo, and all related names, logos, product and service names, designs, and slogans are trademarks of Tomorrow Innovations Inc. You may not use such marks without our prior written permission. All other trademarks referenced on the Website are the property of their respective owners.

3.4 User-Submitted Content

If you submit, upload, post, or transmit any content to the Website, including forum posts, comments, reviews, or feedback ("User Content"), you grant TomoClub a worldwide, royalty-free, irrevocable, perpetual, sublicensable, non-exclusive license to use, reproduce, modify, adapt, publish, translate, distribute, perform, and display such User Content in any media format or channel. You represent and warrant that you own all rights in, or have sufficient authorization to grant rights in, any User Content you submit, and that such content does not violate these Terms or any applicable law.

4. MEMBERSHIP AND PURCHASES

4.1 Products and Membership Plans

TomoClub offers paid memberships (recurring subscriptions) and one-time purchase products including but not limited to ebooks, digital guides, courses, webinars, workshops, and event registrations. By completing a purchase, you agree to pay all applicable fees and any applicable taxes.

4.2 Pricing and Payment

All prices are listed in United States Dollars (USD). TomoClub reserves the right to change pricing at any time. Payment is processed through third-party payment processors. By providing payment information, you represent and warrant that:

- You are authorized to use the payment method provided;
- The payment information is accurate and complete;
- You will promptly update payment information as necessary.

TomoClub does not store full credit card numbers or payment credentials on its servers. Payment processing is handled entirely by PCI-compliant third-party processors.

4.3 Subscriptions and Auto-Renewal

Membership subscriptions automatically renew at the end of each billing period (monthly or annual, as selected) unless cancelled before the renewal date. By enrolling in a subscription, you authorize TomoClub to charge your payment method on a recurring basis. You may cancel your subscription at any time through the process described in your membership confirmation email or by contacting us at info@tomoclub.org. Cancellation takes effect at the end of the current billing period; no partial refunds are issued for unused subscription time unless otherwise required by law.

4.4 Refund Policy

All digital product sales (ebooks, downloadable content, digital courses) are final and non-refundable once the product has been accessed or downloaded, except as required by applicable law. For membership subscriptions and event registrations, refund requests must be submitted within seven (7) days of purchase and before accessing the associated content. TomoClub reserves the right to grant or deny refunds at its sole discretion. To request a refund, contact info@tomoclub.org with your purchase details.

4.5 Institutional and School Purchases

Schools, school districts, and institutions purchasing on behalf of educators or students represent and warrant that they have the authority to enter into this agreement and that all designated users will comply with these Terms. Institutional licenses are non-transferable and may not be shared beyond the authorized scope of the purchase.

5. ACCEPTABLE USE POLICY

You agree to use the Website and Services only for lawful purposes and in a manner that does not infringe the rights of others or restrict or inhibit their use of the Website. You agree NOT to:

- Use the Website for any unlawful, fraudulent, or malicious purpose;
- Attempt to gain unauthorized access to any portion of the Website or any other systems connected to it;
- Transmit any unsolicited commercial communications, spam, or chain messages;
- Post, upload, or transmit content that is defamatory, obscene, threatening, harassing, hateful, or racially or ethnically objectionable;
- Impersonate any person or entity, or misrepresent your affiliation with any person or entity;
- Introduce viruses, malware, ransomware, or other harmful code;
- Use any robot, spider, crawler, or other automated means to access the Website without our express written permission;
- Reverse engineer, decompile, or disassemble any software or technology on the Website;
- Circumvent, disable, or interfere with security-related features of the Website;

- Use the Website in any way that could damage, disable, overburden, or impair the Website or servers.

TomoClub reserves the right to terminate or restrict your access to the Website for any violation of this Acceptable Use Policy, without notice and without liability.

6. CHILDREN'S PRIVACY AND COPPA COMPLIANCE

The Website is not directed toward children under 13 for the purpose of direct personal data collection. Students and minors may be the intended end-users of educational content purchased by parents, guardians, or schools, but they do not register accounts or directly provide personal information on the Website.

TomoClub does not knowingly collect, solicit, or use personal information from children under the age of 13 in violation of the Children's Online Privacy Protection Act (COPPA), 15 U.S.C. § 6501 et seq. If we discover or are notified that we have inadvertently collected personal information from a child under 13 without appropriate parental consent, we will promptly delete such information. Parents or guardians who believe their child has provided personal data to TomoClub without consent should contact us immediately at info@tomoclub.org.

7. THIRD-PARTY LINKS AND CONTENT

The Website may contain links to third-party websites, tools, or services that are not owned or controlled by TomoClub. These links are provided for convenience only. TomoClub has no control over, and assumes no responsibility for, the content, privacy policies, practices, or terms of any third-party sites or services. We encourage you to review the terms and privacy policies of any third-party website you visit.

TomoClub uses the following third-party service providers in connection with the Website:

- Google Analytics — website analytics and traffic reporting;
- Meta (Facebook) Pixel — advertising and conversion tracking;
- Brevo — email marketing and transactional communications;
- Mailchimp — email newsletter management;
- Zoho — CRM and business operations.

Your interactions with these third-party services are governed by their respective terms of service and privacy policies. TomoClub is not liable for any acts or omissions of these third-party providers.

8. DISCLAIMERS AND WARRANTIES

8.1 "As Is" Disclaimer

THE WEBSITE AND ALL SERVICES, CONTENT, AND MATERIALS ARE PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS WITHOUT ANY WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED. TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, TOMOCLUB EXPRESSLY DISCLAIMS ALL WARRANTIES, INCLUDING BUT NOT LIMITED TO IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, NON-INFRINGEMENT, AND ANY WARRANTIES ARISING FROM COURSE OF DEALING OR USAGE OF TRADE.

8.2 Educational Content Disclaimer

The educational content, resources, and professional development materials provided on the Website are for general informational and educational purposes only. They do not constitute professional advice specific to any individual school, district, or educational system. TomoClub makes no representations or warranties that the content is current, accurate, complete, or suitable for any specific educational purpose or jurisdiction.

8.3 Availability

TomoClub does not warrant that the Website will be uninterrupted, error-free, secure, or free from viruses or other harmful components. We reserve the right to perform maintenance, updates, or modifications that may temporarily interrupt access.

9. LIMITATION OF LIABILITY

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL TOMORROW INNOVATIONS INC., ITS OFFICERS, DIRECTORS, EMPLOYEES, AGENTS, CONTRACTORS, LICENSORS, OR SERVICE PROVIDERS BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, PUNITIVE, OR EXEMPLARY DAMAGES, INCLUDING BUT NOT LIMITED TO LOSS OF PROFITS, REVENUE, DATA, GOODWILL, OR OTHER INTANGIBLE LOSSES, ARISING OUT OF OR IN CONNECTION WITH:

- Your access to, use of, or inability to use the Website or Services;
- Any content obtained from the Website;
- Unauthorized access to or alteration of your transmissions or data;
- Any third-party conduct or content on the Website;
- Any errors, inaccuracies, or omissions in educational content;
- Any interruption, suspension, or termination of the Website.

IN ALL CASES, TOMOCLUB'S TOTAL CUMULATIVE LIABILITY TO YOU FOR ANY AND ALL CLAIMS ARISING OUT OF OR RELATED TO THESE TERMS SHALL NOT EXCEED THE GREATER OF (i) ONE HUNDRED DOLLARS (\$100.00) OR (ii) THE TOTAL AMOUNT PAID BY YOU TO TOMOCLUB IN THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE CLAIM.

SOME JURISDICTIONS DO NOT ALLOW THE EXCLUSION OR LIMITATION OF CERTAIN WARRANTIES OR LIABILITY FOR INCIDENTAL OR CONSEQUENTIAL DAMAGES. IF YOU RESIDE IN SUCH A JURISDICTION, THE ABOVE LIMITATIONS MAY NOT APPLY TO YOU TO THE EXTENT PROHIBITED BY LAW.

10. INDEMNIFICATION

You agree to defend, indemnify, and hold harmless Tomorrow Innovations Inc. and its officers, directors, employees, agents, successors, and assigns from and against any and all claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to:

- Your use of or access to the Website or Services;
- Your violation of these Terms;
- Your violation of any third-party right, including intellectual property, privacy, or proprietary rights;
- Any User Content you submit, post, or transmit;
- Your violation of any applicable laws or regulations.

TomoClub reserves the right, at its own cost, to assume exclusive defense and control of any matter subject to indemnification by you, in which case you agree to cooperate fully with TomoClub in asserting any available defenses.

11. GOVERNING LAW AND DISPUTE RESOLUTION

11.1 Governing Law

These Terms and any dispute arising out of or relating to these Terms or your use of the Website shall be governed by and construed in accordance with the laws of the State of Ohio, United States of America, without regard to its conflict of law provisions. The United Nations Convention on Contracts for the International Sale of Goods does not apply.

11.2 Mandatory Arbitration

EXCEPT FOR CLAIMS SEEKING INJUNCTIVE OR EQUITABLE RELIEF, ANY DISPUTE, CLAIM, OR CONTROVERSY ARISING OUT OF OR RELATING TO THESE TERMS OR THE USE OF THE WEBSITE SHALL BE RESOLVED EXCLUSIVELY THROUGH BINDING ARBITRATION ADMINISTERED BY THE AMERICAN ARBITRATION ASSOCIATION ("AAA") UNDER ITS CONSUMER ARBITRATION RULES, WHICH ARE AVAILABLE AT WWW.ADR.ORG. THE ARBITRATION SHALL TAKE PLACE IN DUBLIN, OHIO, OR BY MUTUAL AGREEMENT, REMOTELY. THE ARBITRATOR'S DECISION SHALL BE FINAL AND BINDING AND MAY BE ENTERED AS A JUDGMENT IN ANY COURT OF COMPETENT JURISDICTION.

11.3 Class Action Waiver

YOU AND TOMOCLUB AGREE THAT EACH MAY BRING CLAIMS AGAINST THE OTHER ONLY IN YOUR OR ITS INDIVIDUAL CAPACITY AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS, REPRESENTATIVE, OR COLLECTIVE ACTION. TO THE EXTENT PERMITTED BY LAW, THE ARBITRATOR MAY NOT CONSOLIDATE MORE THAN ONE PERSON'S CLAIMS AND MAY NOT PRESIDE OVER ANY FORM OF REPRESENTATIVE OR CLASS PROCEEDING.

11.4 Venue for Non-Arbitrable Claims

For any dispute or claim that is not subject to arbitration, you agree to submit to the exclusive personal jurisdiction of the state or federal courts located in Franklin County, Ohio. You waive any objection to venue or personal jurisdiction in such courts.

12. DIGITAL MILLENNIUM COPYRIGHT ACT (DMCA) NOTICE

TomoClub respects intellectual property rights. If you believe that material on the Website infringes your copyright, you may submit a DMCA takedown notice to our designated agent:

Tomorrow Innovations Inc.

ATTN: DMCA Agent

4197 Tuller Road, Dublin, Ohio 43017, USA

Email: info@tomoclub.org

Your notice must include: (i) a physical or electronic signature of the copyright owner or authorized agent; (ii) identification of the copyrighted work claimed to be infringed; (iii) identification of the allegedly infringing material and its location on the Website; (iv) your contact information; (v) a statement that you have a good faith belief that the use is not authorized; and (vi) a statement, under penalty of perjury, that the information in your notice is accurate.

13. ELECTRONIC COMMUNICATIONS

By using the Website or providing your email address, you consent to receive electronic communications from TomoClub, including marketing emails, newsletters, promotional content, and service-related notices. These communications satisfy any legal requirement that such communications be in writing. You may opt out of marketing communications at any time by clicking the "unsubscribe" link in any marketing email or by contacting us at info@tomoclub.org. Transactional and service-related emails are exempt from opt-out rights.

14. MODIFICATIONS TO TERMS

TomoClub reserves the right to modify, amend, or replace these Terms at any time at its sole discretion. We will provide notice of material changes by updating the "Last Updated" date at the top of this document and, where appropriate, by sending a notification to the email address associated with your correspondence with us. Your continued use of the Website following any such change constitutes your acceptance of the new Terms. If you do not agree to the modified Terms, you must discontinue use of the Website.

15. SEVERABILITY AND WAIVER

If any provision of these Terms is found by a court or arbitrator of competent jurisdiction to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it enforceable, or if not capable of modification, severed from these Terms, without affecting the validity or enforceability of the remaining provisions.

No failure or delay by TomoClub in exercising any right under these Terms shall constitute a waiver of that right. No single or partial exercise of any right under these Terms shall preclude any other or further exercise of such right or the exercise of any other right.

16. ENTIRE AGREEMENT

These Terms, together with the Privacy Policy and any other legal notices or agreements published by TomoClub on the Website, constitute the entire agreement between you and Tomorrow Innovations Inc. with respect to the Website and the Services and supersede all prior

and contemporaneous understandings, agreements, representations, and warranties, both written and oral, regarding the Website and the Services.

17. CONTACT INFORMATION

For questions, concerns, or notices regarding these Terms, please contact:

Tomorrow Innovations Inc.

4197 Tuller Road, Dublin, Ohio 43017, USA

Email: info@tomoclub.org

Website: www.tomoclub.org